



## Families First Application Process

**Policy 23.01**

**Effective: July 1, 2024**

### Introduction

The Tennessee Department of Human Services shall allow any individual who wishes to apply for Families First the opportunity to file an application and have a determination of eligibility within forty-five (45) calendar days.

### Scope

This policy outlines the process for individuals to obtain and file an application, as well as the application and interview process.

### Policy

#### Right to Apply for Families First

1. Any person wishing to do so shall have the opportunity to apply for Families First. The right to file an application shall not be denied to any person even though it is apparent that eligibility for Families First benefits does not exist.
2. Information about the Families First program administered by the Tennessee Department of Human Services (TDHS) shall be provided to any person requesting it.
3. A customer may be assisted by any individual of their choosing in completing and submitting the application, interviewing with the assigned TDHS staff, and submitting verifications.
4. It is unlawful to charge or receive anything of value, either directly or indirectly, for providing application assistance to a person requesting Families First.
5. Proof of eligibility is not required prior to filing an application.

#### Filing an Application

1. The Families First application process begins with a signed request for assistance on [HS-0169 Family Assistance Application](#) or completing an online application.
  - a. Applications will be available to any person who requests an application in person at all TDHS county offices.

- b. The application will be mailed on the same business day when an application request is received by mail, phone, fax, or electronically during normal business hours.
    - Requests received outside of normal business hours will be mailed on the following business day.
  - c. Any person making an inquiry about an application should be advised of their right to same-day filing to protect the application start date.
2. TDHS will accept signed and dated applications received in the county office. Applications should be filed in the customer's county of residence.
- a. The application may be received in person, by mail, online, by fax, or other electronic transmission.
  - b. The application may be filed by the customer, their authorized representative, designated agent, or someone acting responsibly for them.
  - c. The application file date will be the date the application is received by the county office during normal business hours.
  - d. The application file date will be the following business day for applications received outside of normal business hours.
  - e. Applications that contain the customer's name and signature are valid.
  - f. Receipt of an original application in addition to the faxed or electronic copy is not required.
3. The customer may voluntarily withdraw the application at any time prior to the determination of eligibility.

### **Timeliness Standards**

1. The standard for completing applications for Families First will be no later than forty-five (45) calendar days from the application file date.
2. Benefits are issued the first (1<sup>st</sup>) business day following the day the authorization is completed.
3. Any application for Families First that is not processed and authorized on the forty-ninth (49<sup>th</sup>) calendar day will be issued interim benefits based on the information that is available in the case record so that the customer's benefits are issued no later than the fiftieth (50<sup>th</sup>) calendar day.
4. The authorization action will consist of approval or denial. Denial must be based on ineligibility for the program, failure to develop and/or sign a Personal Responsibility Plan, loss of contact, withdrawal of the application, or death of the customer.

### **Scheduling Interviews**

1. TDHS will schedule an interview as promptly as possible after the filing of the application.

2. A customer who misses an interview will not be automatically scheduled for a second (2<sup>nd</sup>) interview. An application that is pending will be denied on the forty-fifth (45<sup>th</sup>) calendar day if the customer does not reschedule a missed interview.
3. If eligible, the AU will have the opportunity to renew benefits annually.
  - a. The eligibility and case management system will provide an appointment notice to the AU the month before the AU renewal is due. The notice will contain [HS-3026 Family Assistance Renewal Application](#).
  - b. The renewal application must be received by TDHS before the renewal interview can be conducted.
  - c. If the customer does not complete an application and/or misses their renewal interview, the case must be closed on or before the fifteenth (15<sup>th</sup>) of the month.

### Interviewing for Eligibility

The customer or the customer's designee must complete an interactive interview with the eligibility staff at each application. The initial interview cannot be completed by phone unless the face-to-face interview has been waived due to a barrier. At annual renewal, the interview can be completed face-to-face or by phone. Home visits are not mandatory but may be used when no alternative accommodations can be made or are appropriate for the situation. The interviews are designed to:

1. Allow the eligibility staff to assist the customer in understanding TDHS and its programs, clarify the customer's questions about eligibility, and determine eligibility in an organized manner while allowing the customer the opportunity to present information in their own words.
2. Allow the eligibility staff and the customer an opportunity to discuss the customer's goals, specific needs, and potential support services needed to help the family move towards self-sufficiency.
3. Provide the opportunity to discuss the customer's rights and responsibilities.
4. Provide an opportunity to discuss other resources that may be of assistance to the customer.
5. Provide the eligibility counselor with the information needed to determine which one (1) of the four (4) paths through the program is most appropriate for the customer.
  - a. Child Only
  - b. Work Exempt
  - c. Diversion
  - d. Work and/or Educational Activity

**Note:** A single interview may be conducted for all Family Assistance programs. If there are multiple AUs in the residence group, the head of each AU must be interviewed.

### Determination of Eligibility

The following must be established during the application process:

1. Technical Eligibility as outlined in policy [23.03 Families First Technical Eligibility](#).
2. Income Eligibility as outlined in policy [23.05 Families First Income Eligibility](#)
3. Resource Eligibility as outlined in policy [23.04 Families First Resource Eligibility](#).
4. The Personal Responsibility Plan as outlined in policy [23.07 Families First Personal Responsibility Plans](#).
5. If the customer fails or refuses to cooperate in the eligibility determination process, it will result in case closure or application denial.

### **Providing Notice of Eligibility Determination**

The eligibility and case management system will generate a notice to the customer on the first (1<sup>st</sup>) business day following the day the Families First AU has been authorized.

1. The reason for the approval/denial will generate the text for the approval or denial notice of the Families First AU.
2. The denial notice will contain an explanation of why the application was denied and of the right to reapply at any time.
3. The approval notice will contain:
  - a. The ongoing monthly benefit amount and the amount for the application period.
  - b. The month the cash payment will begin.
  - c. A reminder to report changes within ten (10) calendar days of the change.
4. A fair hearing statement is included with all notices. The fair hearing statement contains a name and telephone number of the person to contact for additional information. If there is an individual or organization that provides free legal representation, the AU will be advised of the availability of that service.

### **Reapplication after Denial**

If an AU files an application within three (3) months of case closure or the denial of an application:

1. The customer must be interviewed and have all points of eligibility reviewed.
2. All matches must be reviewed.
3. Verify the following factors of eligibility:
  - a. That the point(s) of eligibility which caused the previous denial or closure no longer exists;
  - b. AU composition;
  - c. Income;
  - d. Deductible expenses; and
  - e. Resources, if questionable.
4. Review the need for drug screening as outlined in policy [23.06 Families First Drug Testing](#).

5. Renegotiate the Personal Responsibility Plan as outlined in Policy [23.07 Families First Personal Responsibility Plans](#).

**Note:** The eligibility and case management system will require that all eligibility factors be verified. Unless the information is questionable or has changed at the time of the interview, accept the previous verification and the statement of the customer for the verification other than those listed above.

### **Customers Who Appear to be Eligible for SSI**

When the Families First customer appears to be potentially eligible for Supplemental Security Income (SSI), the customer will be asked whether an application for SSI has been filed. If an application for SSI has not been filed, a brief explanation of the program will be provided to the customer.

1. The customer will be included in the AU and, if they choose to apply for SSI and become eligible, they will be removed from the AU at the time eligibility for SSI is attained.
2. If the customer wishes to relinquish SSI and be included in the Families First AU, the eligibility counselor will explain the differences in benefits. If the individual chooses to be in the Families First AU, the eligibility counselor will ask the individual to talk to a Social Security Office representative. When the State Data Exchange (SDX) verifies that the individual no longer receives SSI, the individual may be added to the Families First AU.

### **Supporting Documents**

[HS-0169 FA Application for Assistance-English](#)

[HS-0169 FA Assistance Application Addendum-English](#)

[HS-0169sp FA Assistance Application-Spanish](#)

[HS-0169sp FA Assistance Application Addendum-Spanish](#)

[HS-0169a FA Assistance Application and Addendum-Arabic](#)

[HS-0169s FA Assistance Application and Addendum-Somali](#)

[HS-0169sw FA Assistance Application and Addendum-Swahili](#)

[HS-3026 FA Renewal Application-English](#)

[HS-3026sp FA Renewal Application-Spanish](#)

[Family Assistance Online Application](#)

[Families First Application Process Procedures](#)

[Families First Rights and Responsibilities](#)

[23.06 Families First Drug Testing Policy](#)

[23.04 Families First Resource Eligibility](#)

[23.05 Families First Income Eligibility](#)

[23.07 Families First Personal Responsibility Plans](#)

## Definitions/Acronyms

| Term                                       | Definition                                                                                                                                                                                                                                                                                                                                           |
|--------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>AU</b>                                  | Assistance Unit                                                                                                                                                                                                                                                                                                                                      |
| <b>Child Only</b>                          | Cases in which the caretaker is a non-parental relative who is not included in the AU or the caretaker(s) is a Supplemental Security Income (SSI) beneficiary                                                                                                                                                                                        |
| <b>Diversion</b>                           | The Families First Diversion payment is designed to address immediate and compelling financial needs and help a customer secure or maintain employment. The Diversion payment does not exceed twelve (12) months of Families First benefits.                                                                                                         |
| <b>Family Assistance Eligibility Staff</b> | Any Family Assistance staff that may interview the customer and/or determine program eligibility. This may include Eligibility Assistants and/or Eligibility Counselors.                                                                                                                                                                             |
| <b>Interim Benefits</b>                    | Temporary benefits issued to customers whose application has not been processed timely due to no fault of the customer.                                                                                                                                                                                                                              |
| <b>Normal Business Hours</b>               | Normal business hours are 8AM-4:30PM local county office time. For online applications, normal business hours are 8AM-4:30 PM Central Standard Time (CST).                                                                                                                                                                                           |
| <b>Personal Responsibility Plan (PRP)</b>  | An agreement between the Families First customer and the TDHS in which the Families First customer agrees to take certain steps to move the AU to self-sufficiency. In return, TDHS agrees to provide temporary cash assistance and additional support services to help the customer gain employment.                                                |
| <b>SDX</b>                                 | State Data Exchange                                                                                                                                                                                                                                                                                                                                  |
| <b>SSI</b>                                 | Supplemental Security Income                                                                                                                                                                                                                                                                                                                         |
| <b>TANF</b>                                | Temporary Assistance to Needy Families                                                                                                                                                                                                                                                                                                               |
| <b>TDHS</b>                                | Tennessee Department of Human Services                                                                                                                                                                                                                                                                                                               |
| <b>Work Exempt</b>                         | The caretaker is a mandatory member of the AU but is unable to work because they are: sixty-five (65) years old or older, disabled, caring for an in-home disabled relative, a parent in a two (2) parent household caring for an infant less than sixteen (16) weeks of age, or a single parent caring for an infant less than one (1) year of age. |
| <b>Work and/or Educational Activity</b>    | The caretaker is a mandatory member of the AU but is not exempt from the work and/or education activity and either does not meet diversion criteria or does not choose diversion.                                                                                                                                                                    |

## Supersedes

Policy 23.01 Families First Application Process, eff. date 03/01/2024

## Authority

45 C.F.R. § 206.10.

Tenn. Code Ann. § 71-3-118

Tenn. Comp. R. & Regs. 1240-1-14; 1240-1-15; 1240-1-17; 1240-1-45.

## Application

All TDHS Family Assistance Staff and Contractors

**Revision History**

| Date       | Version    | Location of Change                                  | Description/Reason for Change                                                                                                                                |
|------------|------------|-----------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 06/26/2024 | 07/01/2024 | Definitions                                         | This policy revision removed temporarily incapacitated from the work exempt definition.                                                                      |
| 02/23/2024 | 03/01/2024 | Title, Introduction, Policy Section, & Definitions. | Revised to remove Availability of application section and update the language throughout to match current processes, the glossary, and supporting documents. |
| 02/14/2018 | 02/15/2018 | Policy Section & Supporting Documents               | Addition of information regarding drug screening & references to Supporting Documents                                                                        |
| 03/02/2017 | 04/01/2017 | New Document                                        | New Document                                                                                                                                                 |

**Approval History**

| Approved By              | Approver Title      | Approved Date | Effective Date |
|--------------------------|---------------------|---------------|----------------|
| Clarence Carter          | Commissioner        | 06/26/2024    | 07/01/2024     |
| Clarence Carter          | Commissioner        | 02/23/2024    | 03/01/2024     |
| Danielle Barnes          | Commissioner        | 02/14/2018    | 02/15/2018     |
| Cherrell Campbell-Street | Deputy Commissioner | 03/02/2017    | 04/01/2017     |

**Current Approver**